

22GDCV00044 22GDCV00044

County: los-angeles

Division: Civil Law and Motion

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[TENTATIVE] ORDER GRANTING PLAINTIFF'S MOTION TO ENFORCE SETTLEMENT

I. INTRODUCTION

Plaintiff Interinsurance Exchange of the Automobile Club ("Plaintiff") filed this automobile subrogation action against Defendant Marine Saakian ("Defendant") on January 25, 2022. Plaintiff alleges that on December 22, 2020, Defendant negligently operated a vehicle and collided with a vehicle insured by Plaintiff at the Colorado Street Freeway extension and San Fernando Road in Los Angeles. Plaintiff alleges it became subrogated to its insured's rights after paying for damages arising from the collision and seeks to recover those amounts from Defendant.

On July 24, 2026, Plaintiff filed the instant motion to enforce the parties' settlement agreement and enter judgment against Defendant. The motion is unopposed.

II. LEGAL STANDARD

Code of Civil Procedure section 664.6 provides a summary procedure that enables courts to enforce a settlement agreement by entering a judgment pursuant to the terms of the parties' settlement. In relevant part, it provides as follows:¿

"If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (Code Civ. Proc., § 664.6, subd. (a).)

A writing is considered signed if signed by the party or an attorney who represents the party. (Code Civ. Proc., § 664.6, subd. (b).)

III. ANALYSIS

Plaintiff moves to enforce the settlement agreement entered into with Defendant pursuant to Code of Civil Procedure sections 187 and 664.6. Plaintiff contends Defendant defaulted on the installment payments required under the parties' Settlement Agreement and Release of All Property Damage Claims and Stipulation for Entry of Judgment and Installment Payments ("Stipulation"). Plaintiff seeks entry of judgment in the amount of \$33,338.86, with interest continuing to accrue at \$8.30 per day. (Motion, pp. 3-4.)

The motion is unopposed.

Code of Civil Procedure section 664.6 authorizes the Court to enter judgment on a settlement agreement where the agreement is in writing, signed by the parties, and the Court retains jurisdiction. (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 305.)

Here, the parties entered into a written Stipulation signed by both Plaintiff and Defendant. Defendant agreed to pay \$10,000 by January 30, 2024, followed by monthly payments of \$50 from March 1, 2024, through August 1, 2036. The Stipulation provides that, upon Defendant's default and failure to cure, Plaintiff may seek judgment for \$30,300.39, plus interest and costs, less credit for payments made before default. (Id. at p.4.)

The Stipulation further provides that a default occurs when a payment is not received within five days of its due date and gives Defendant 30 days after notice to cure the default. Paragraph 9 provides that the Court retains jurisdiction pursuant to Code of Civil Procedure section 664.6. On February 28, 2026, the Court granted the parties' Stipulation and retained jurisdiction to enforce its terms.

Plaintiff presents evidence that Defendant's insurance carrier paid the initial \$10,000 and Defendant thereafter paid \$1,100 in installments, for total payments of \$11,100. No further payments have been received. (Tapper Decl., ¶ 4.) Plaintiff's counsel further declares that Defendant was provided written notice of the default and 30 days to cure, but failed to do so. (Tapper Decl., ¶ 5.) Defendant has filed no opposition disputing the default or the amount sought.

Thus, Plaintiff has established that Defendant defaulted under the Stipulation and failed to timely cure the default. Plaintiff is therefore entitled to entry of judgment pursuant to the terms of the Stipulation.

Based on the foregoing, the Court GRANTS Plaintiff's unopposed motion to enforce the settlement. Judgment shall be entered in favor of Plaintiff Interinsurance Exchange of the Automobile Club and against Defendant Marine Saakian in the amount of \$33,338.86, consisting of \$30,300.39 in principal, \$13,556.31 in interest through July 16, 2026, less \$11,100 in payments received, plus \$582.16 in court costs, with interest continuing to accrue thereafter at the rate of \$8.30 per day.

IV. CONCLUSION AND ORDER

The Court GRANTS Plaintiff's motion to enforce the settlement agreement. Judgment shall be entered in favor of Plaintiff Interinsurance Exchange of the Automobile Club and against Defendant Marine Saakian in the amount of \$33,338.86, consisting of \$30,300.39 in principal, \$13,556.31 in interest through July 16, 2026, less \$11,100 in payments received, plus \$582.16 in court costs, with interest continuing to accrue thereafter at the rate of \$8.30 per day.

Plaintiff to give notice.

Dated: August 28, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT